

IN THE HIGH COURT OF TAZANIA
DAR ES SALAAM DISTRICT REGISTRY
AT DAR ES SALAAM
MISC. CIVIL APPLICATION NO. 548 OF 2018
(Arising from Civil Appeal No. 40 of 2017)

ASHIRA K. NURAD.....APPLICANT
VERSUS
SAID RAMADHANI DINYA.....RESPONDENT

RULING

Date of last order: 15/9/2020

Date of Ruling: 31/12/2020

S.M. KULITA J;

This is a ruling for an application of extension of time to file application for restoration. It has been brought under section 14(1) of the Law of Limitation Act. The application is accompanied with a chamber summons and the affidavit of Mr. **RAMADHANI ABDALLAH CHAUREMBO**, the applicant's advocate. The applicant seeks for the court to grant extension of time to file application for restoration of Civil Appeal No. 40 of 2017 which was dismissed for want of prosecution on 14/6/2018.

The matter was argued by way of written submissions. While the applicant enjoyed the legal aid services of Legal and Human Rights Centre through Mr. Ramadhani Chaurembo, Advocate the respondent was represented by the Mr. Moses Boaz Advocate from Universe Attorneys.

In her written submission the applicant's counsel submitted that the applicant was represented by the Late Advocate Yassin Membar, who was admitted at Jakaya Kikwete Cardiac Institute at Muhimbili National Hospital suffering from heart disease, the disease which later on caused his death.

He submitted that following the death of the applicant's advocate, it took her time to make follow up of her case considering the fact that the late advocate was a sole proprietor, thus his beneficiaries took time to inform his clients including the Applicant. The Counsel stated that it was hard for the applicant to locate her case file from the late advocate Membar's office for the reason that his beneficiaries could not easily facilitate the availability of the case file to the applicant on time. The applicant therefore found herself out of time.

The applicant's counsel further submitted that the applicant was not aware of the dismissal order following the death of her late advocate. When she made a follow up in court she was informed on the said dismissal order of the court.

The Applicant's Counsel further submitted that the applicant has established sufficient cause for this court to grant extension of time.

Opposing the said application Mr. Boaz, Advocate for the Respondent prayed for the contents of the Respondent's counter affidavit be adopted as part of his submission. He then submitted that the applicant has no genuine reason for this court to grant extension of time as she has proved negligence in pursuing her case.

With regard to account for delay Mr. Boaz submitted that there is a delay of almost 463 days of which the applicant has failed to give an account of each day of delay. He submitted that that shows recklessness and negligence on part of the applicant, hence the application should not be granted. To support his argument, he cited the case of **Mathew Martin vs. Managing Director Kahama Mining Corporation, Civil Case No. 79 of 2006, High Court, at DSM (unreported)**.

Further to his submission, Mr. Boaz touched the issue of illegality on the decision he sought to challenge as one of the grounds for the court to consider in extension of time. He submitted that the applicant's affidavit has not alleged any illegality in the decision she seeks to challenge as a ground for extension of time. He levelled his submission by citing the case of **Principal**

Secretary, Ministry of defence & National Services vs. Devram Valambhia (1992) TLR 182.

Mr. Boaz concluded his opposing submission by praying for the dismissal of this application.

Having carefully considered the rival submissions and the affidavits by both parties I find the issue for determination in this application for extension of time to restore the dismissed case is whether the applicant has established sufficient reason for this court to grant extension of time. Paragraph 3 and 4 of the applicant's affidavit as well as his Advocate's submission transpire that the cause of delay was the heart sickness of the Applicant's Advocate, late Yassin Membar which led to his admission at Jakaya Kikwete Cardiac Institute for three months and later on, 20th March, 2018 he passed away.

It is Mr. Chaurembo's submission that following the death of her Advocate it took the applicant time to make follow up of her case as the late advocate was a sole proprietor. His beneficiaries took time to inform her and to locate her case file from his office. For those reasons the applicant could not easily facilitate with the availability of the case file on time, she therefore found herself out of time.

Although Mr. Boaz strongly opposes the cause of delay and account of delay by the applicant by faulting her for being

negligent in pursuing her case, I find the circumstances advanced by the applicant's counsel are sufficient, naturally sickness and death are the matters which are beyond the human control. In such circumstances it is obvious that the applicant was helpless.

From the basis of foregoing analysis, I am of the view that the applicant has sufficient cause to bring this application. However, I have noticed that in her application the Applicant prayed for the extension of time only, but as for the nature of her application she was also supposed to pray for restoration of the dismissed case. They are not supposed to be separate applications. The logic behind is that even if she files the said application for restoration the reasons shall remain the same as to what she has established as the reasons for extension of time.

In upshot I hereby grant the extension of time for the restoration of the Civil Appeal No. 40 of 2017. The said restoration to be done within 30 days period from the date of this ruling. As the application involves family matter, I make no orders as to costs.



S.M. KULITA

JUDGE

31/12/2020